

(2) References in this Act to the administration of an oath shall include references to the taking of an affidavit, and references in section 2(2) of this Act shall be construed accordingly.

(3) Any power conferred by this Act to make an Order shall include power to vary or revoke the Order.

Short title and
extent.

7.—(1) This Act may be cited as the Oaths and Evidence (Overseas Authorities and Countries) Act 1963.

(2) It is hereby declared that this Act extends to Northern Ireland.

(3) Her Majesty may by Order in Council direct that any provisions of this Act shall extend to the Isle of Man or any of the Channel Islands, with such adaptations or modifications as may be specified in the Order; and where any provision is so extended any Order made thereunder shall have the like extent notwithstanding that it was made before the coming into operation of the Order under this subsection, but as so extended shall have effect subject to any adaptations or modifications specified in the last-mentioned Order.

1963 CHAPTER 28

Oil in Navigable Waters Act 1963

ARRANGEMENT OF SECTIONS

Section

1. Amendments as to prohibited sea areas.
2. Restriction of discharge at sea from new ships over specified tonnage.
3. Minor amendments and repeals.
4. Short title, construction, citation, commencement and extent.

SCHEDULES:

- Schedule 1—Minor Amendments.
Schedule 2—Repeals.

An Act to enable effect to be given to certain amendments of the International Convention for the Prevention of Pollution of the Sea by Oil 1954, and otherwise to extend the Oil in Navigable Waters Act 1955.

[31st July 1963]

WHEREAS on the 11th April 1962 the Conference of Contracting Governments to the International Convention for the Prevention of Pollution of the Sea by Oil 1954, adopted amendments to that Convention:

And whereas it is expedient to enable effect to be given to those amendments, and otherwise to extend the Oil in Navigable Waters Act 1955:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The areas which at the coming into operation of this section are prohibited sea areas in relation to tankers shall be prohibited sea areas in relation to all ships to which section 1 of the Oil in Navigable Waters Act 1955 (hereafter referred to as "the principal Act") applies. Amendments
as to
prohibited
sea areas.

(2) The power of the Minister under section 2 (7) or 2 (8) of the principal Act (variation or deletion of prohibited sea areas, and designation of additional areas, in accordance with or to give effect to Conventions) shall be exercisable either generally or in relation to different classes of vessels or different circumstances or both.

2.—(1) If any oil to which section 1 of the principal Act applies is discharged anywhere at sea from a British ship registered in the United Kingdom, being a ship of twenty thousand tons gross tonnage or more for which the building contract was entered into on or after the coming into operation of this section, or if there is so discharged from such a ship any such oily mixture as is mentioned in subsection (1) of that section, the owner or master of the ship shall, subject to the provisions of the principal Act, be guilty of an offence. Restriction of
discharge at
sea from new
ships over
specified
tonnage.

Provided that it shall be a defence to prove that by reason of special circumstances it was impracticable or unreasonable to retain the oil or mixture in the ship.

(2) Where any such oil or oily mixture is discharged at sea from such a ship as aforesaid, the master of the ship shall as soon as may be report the fact in the prescribed form and manner to the Minister, and if he fails to comply with this subsection he shall be guilty of an offence.

(3) Section 1 (3) of the principal Act (power to prescribe exceptions) shall apply to subsection (1) of this section, and sections 4 (special defences) and 6 (penalties) of the principal Act shall apply in relation to offences under the said subsection (1).

(4) In subsection (2) of this section "prescribed" means prescribed by regulation under section 7 of the principal Act, and subsection (5) of that section (failure to keep records and falsification of records) and subsection (6) thereof (evidence) shall apply in relation to reports required by subsection (2) of this section as they apply in relation to records required under the said section 7.

(5) For the purpose of giving effect to any variation of the Convention of 1954 or to any subsequent Convention the Minister may by order apply the foregoing provisions of this section to ships of such classes as may be specified in the order.

(6) Nothing in this section shall be taken to authorise the discharge of oil or oily mixture in a prohibited sea area.

Minor
amendments
and repeals.

3.—(1) The minor amendments of the principal Act specified in Schedule 1 to this Act shall have effect.

(2) The provisions of the principal Act specified in the third column of Schedule 2 to this Act are hereby repealed:

Provided that the repeals shall not affect the operation of any order of the Minister made before the coming into operation of the repeals.

Short title,
construction,
citation,
commence-
ment and
extent.

4.—(1) This Act may be cited as the Oil in Navigable Waters Act 1963.

(2) This Act shall be construed as one with the principal Act, and that Act and this Act may be cited together as the Oil in Navigable Waters Acts 1955 and 1963.

(3) This Act shall come into operation on such day as the Minister may by order appoint, and different days may be appointed for the purpose of different provisions of this Act.

(4) It is hereby declared that this Act extends to Northern Ireland.

SCHEDULES

Section 3.

SCHEDULE 1

MINOR AMENDMENTS

1.—(1) In subsection (1) of section 1 of the principal Act for the words "containing oil to which this section applies" there shall be substituted the words "containing not less than one hundred parts of oil to which this section applies in a million parts of the mixture", and the words from "with the consequence" to "sea" shall cease to have effect.

(2) Subsection (4) of the said section 1 shall cease to have effect.

2.—(1) In subsection (1) of section 4 of the principal Act for the words from "the vessel" to "cargo" there shall be substituted the words "any vessel, or of preventing damage to any vessel or cargo".

(2) In section 7 of the principal Act, in subsection (1) (a) for the words from "her safety" to "cargo" there shall be substituted the words "the safety of any vessel, or of preventing damage to any vessel or cargo".

3.—(1) Subject to section 16 (1) of the principal Act (exclusion of naval ships), provisions of the principal Act or this Act which are expressed to apply only to British ships registered in the United Kingdom apply—

(a) to Government ships so registered,

(b) to Government ships, not so registered, which are held for the purposes of Her Majesty's Government in the United Kingdom,

as they apply to other ships which are registered in the United Kingdom as British ships.

(2) In this paragraph "Government ships" has the same meaning as in section 80 of the Merchant Shipping Act 1906.

6 Edw. 7 c. 48.

(3) Section 16 (2) (a) of the principal Act shall cease to have effect.

SCHEDULE 2

REPEALS

Section 3.

Session and Chapter	Short Title	Extent of Repeal
3 & 4 Eliz. 2. c. 25.	The Oil in Navigable Waters Act 1955.	In section 1 (1), the words "in relation to that ship" and the words from "with the consequence" to "sea". Section 1 (4). In section 2 (1), the words from "in relation to tankers" to the end. In section 2 (2), in paragraph (a) the words "Part 1 of", "as from the coming into operation of this paragraph", and "in relation to tankers", and paragraph (b). Section 2 (3) and (4). In section 2 (5), the words "Part 1 of" and "in relation to tankers" in paragraph (a), and paragraph (b). Section 2 (6). In section 2 (8), the words from "in relation" to "than tankers" and from "in relation to tankers" to the end. In section 16 (2), paragraph (a). In section 22 (1), the definition of "tanker". In the Schedule, Parts II and IV, and in the headings to Parts I and III the words "<i>for Tankers</i>".